

3	Brown vs. Mercedes-Benz USA, LLC 2026-01562993	Motion to Compel Arbitration <i>Vacated. See minute order dated 8/12/26.</i>
4	Diaz vs. Newrez, LLC 2025-01477023	Demurrer to Amended Complaint Defendant NEWREZ LLC dba Shellpoint Mortgage Servicing's demurrer to the 1 st through 8 th causes of action of the First Amended Complaint of Martha Diaz is OVERRULED in part and SUSTAINED in part as follows: The demurrer is overruled as to the 1st, 2nd, 4th, 7th and 8 th causes of action. The demurrer is sustained as to the 3rd, 5 th and 6 th causes of action with ten days leave to amend. Newrez's request for judicial notice is granted. <i>Case Management Conference is scheduled for January 29, 2027 at 8:30 a.m. in Department C44.</i> Newrez to give notice.
5	Moayedvi vs. Pellkofer 2025-01504685	Motion to Be Relieved as Counsel of Record (2) <i>Hearings vacated. See minute order dated 8/11/26.</i>
6	Moran vs. BBB San Diego, LLC 2025-01518281	Motion to Compel Arbitration Defendant BBB San Diego, dba Ferrari & Maserati of San Diego's Motion to Compel Arbitration is DENIED. Plaintiff's Request for Judicial Notice is DENIED. Defendant moves to compel Plaintiff to arbitration pursuant to the Federal Arbitration Act and the California Arbitration Act. "Under the Federal Arbitration Act (FAA; 9 U.S.C. § 1 et seq.), a written agreement to arbitrate 'shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract' (9 U.S.C. § 2.) Unless an exception applies, if the matter is arbitrable, the court "shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the

	agreement” (9 U.S.C. § 3.) [I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of California contract law guide the court in making this determination. The party seeking arbitration bears the burden of proving the existence of an arbitration agreement,” (<i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1128.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169; (Code Civ. Proc, § 1281.2.) “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51.) Defendant’s motion is based on three arbitration agreements which Plaintiff executed during his employment, dated January 11, 2021, December 30, 2021, and July 21, 2022. In or about January 2021, when Defendant came under new ownership, it implemented an arbitration agreement as part of its onboarding and employment policies (“First Agreement”). (Chan Decl., ¶ 11.) In or about December 2021, Defendant updated its arbitration agreement and provided the updated agreement to its employees for review (“Second Agreement”). (Chan Decl., ¶ 9.) Defendant again updated its arbitration agreement in or about July 2022 (“Third Agreement”). (Chan Decl., ¶ 11.) The December 30, 2021, Agreement expressly identifies the employer as BBB San Diego, LLC doing business as Ferrari and Maserati of San Diego. The January 11, 2021, and July 21, 2022, Agreements identify the employer as BBB Automotive, LLC. The
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	parties have agreed that Plaintiff's employer was BBB San Diego, LLC. (Ghozland Decl., ¶ 3, Exh. B.) Each of the executed Agreements provides that employment-related disputes between Plaintiff and Defendant are to be resolved through binding arbitration. (Chan Decl., ¶ 6, Exs. A–C.) The first issue to determine is whether Defendant can enforce the arbitration agreements when it was only a signatory to the Second Agreement (December 30, 2021), and not the First or the Third Agreement. A nonsignatory bears the burden to establish he or she is a party to the arbitration agreement/provision covering the dispute. (<i>Toothman v. Redwood Toxicology Laboratory, Inc.</i> (2026) 120 Cal.App.5th 412, 419.) Here, Defendant has offered no legal theory as to why it is entitled to enforce the First and Third Agreements, which identify BBB Automotive, LLC as the employer or “Company,” and not Defendant. Defendant offers no explanation in the moving papers concerning the nature of BBB Automotive, LLC’s relationship with Defendant, nor does it argue why it is entitled to enforce the arbitration agreements of BBB Automotive, LLC. Mr. Chan states in his declaration that BBB San Diego, dba Ferrari & Maserati of San Diego is a subsidiary of BBB Automotive, LLC, but offers no evidence to substantiate this fact, nor is this assertion addressed in the moving papers. Defendant never argues it can enforce the First or Third Arbitration Agreements as a subsidiary of BBB Automotive, LLC. (See <i>Paulus vv. Bob Lynch Ford, Inc.</i> (2006) 139 Cal.App.4th 659, 685 [“Courts will ordinarily treat the appellant’s failure to raise an issue in his or her opening brief as a waiver of that challenge.”].) Therefore, Defendant has not sustained its burden to establish it can enforce the First or Third Arbitration Agreements. The next issue to determine is whether Defendant can enforce the Second Agreement which correctly identifies it as the employer or “Company.” Under California law, a subsequently executed written contract addressing the same subject matter supersedes inconsistent provisions in prior agreements. Both Civil Code section 1625 and Code of Civil Procedure section 1856 codify this principle. In the moving papers, Defendant asserts that the Second Agreement was an update to the First Agreement, and the Third Agreement was an update to the Second Agreement. Thus,
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		conceding that the Third Agreement was considered the operative arbitration agreement. As stated above, Defendant cannot enforce the Third Agreement because it is not a signatory to that agreement. Defendant makes no argument that the Second Agreement is enforceable despite the unenforceability of the Third Agreement. For these reasons, the Court finds Defendant has failed to sustain its burden of demonstrating the existence of an agreement to arbitrate. Accordingly, the motion to compel arbitration is DENIED. <i>Case Management Conference is scheduled for January 29, 2027 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
7	White vs. Ford Motor Company 2025-01459385	Motion for Attorney Fees Plaintiff Russell White’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Defendant’s evidentiary objection no. 23 is SUSTAINED (lacks foundation, authentication). Defendant’s evidentiary objection no. 24 is SUSTAINED (relevance). Defendant’s remaining evidentiary objections are OVERRULED. Plaintiffs is awarded attorney fees in the amount of \$17,284.50, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”].) However, the paralegal rate claimed appears excessive, and the court awards paralegal fees at \$150.00 per hour instead. The court has also somewhat reduced the time claimed by moving party’s attorneys for time spent on discovery (stayed per Code Civ.